RP-2023-421926
11/03/2023 ER $74.00

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CERTIFICATION
MASON WOODS COMMUNITY ASSOCIATION, INC.

Architectural Modification Guidelines

I, the undersigned, pursuant to Texas Property Code §202.006, certify:

That I am the President of Mason Woods Community Association, Inc., a Texas nonprofit corporation (the "***Association***");

That the attached document is a document that applies to the operation and utilization of residential property within Mason Woods, a development in Harris County, Texas;

That the property affected by the attached document is the property restricted by that certain Declaration of Covenants, Conditions, and Restrictions for Mason Woods, recorded under Clerk's File No. RP-2022-378389 in the Official Public Records of Harris County, Texas, as same has been or may be amended from time to time (the "***Declaration***"), and any other property which has been or may be annexed thereto and made subject to the authority of the Association;

That the document which affects the use and operation of the above-referenced property is attached as **Exhibit A**.

SIGNED this the 18th day of October, 2023.

MASON WOODS COMMUNITY ASSOCIATION, INC.

By: _____
Print Name: Daniel Gillham
Title: President

STATE OF TEXAS §

COUNTY OF Harris §

BEFORE ME, the undersigned authority, on this day personally appeared Daniel Gillham, the President of Mason Woods Community Association, Inc., known by me to be the person whose name is subscribed to this instrument, and acknowledged to me that s/he executed the same for the purposes and in the capacity stated in this instrument, and as the act and deed of said corporation.

Given under my hand and seal of office this the 18th day of October 2023.

TAMARA JOSEPH
Notary ID #134522505
My Commission Expires
August 23, 2027

_____
Notary Public – State of Texas

EXHIBIT A

(Architectural Modification Guidelines follows)

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Mason Woods Community Association Inc.
Architectural Modification Guidelines

1) **Arbors/Pergolas:**
   a) An "arbor or pergola" shall be defined as a free standing, open framed structure whose purpose shall not be for any type of open storage.
      (1) Location: Must not encroach on any utility or drainage easement, nor shall it violate the building setback lines applicable to the residential dwelling on any lot. Arbors/Pergolas must not interfere with drainage or cause water to flow onto any adjacent lot. May not contain enclosure walls.
      (2) Material: Supporting structure members shall be constructed of materials resistant to decay, such as Alumawood, aluminum, pressure-treated yellow pine, redwood, cedar, treated wood painted a color and shade similar to and harmonious with the exterior of the residence. Clear polycarbonate covers are permitted and must be installed on top of the girders or rafters. Secured foundation design required with submittal. Colors shall be harmonious with existing residence.
      (3) Dimensions: The maximum height for arbors and pergolas may not exceed twelve (12) feet measured from the ground to the highest point. Not to exceed 300 square feet.
2) **Basketball Goals:**
   a) Portable Goals:
      (1) Location: Only one basketball goal per lot will be permitted. Portable goals must be stored in an upright position. They must never be more than ten (10) feet in front of the most setback portion of the façade on houses with front loading or corner lot side loading garages. Houses with recessed garages may only place portable goals behind the front building setback line. Placement at the curb or in the street for use is strictly prohibited. Portable goals may not have items placed on the base as weights to keep the goal from tipping at any time; the base must be filled with sand or water for that purpose.

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(2) Material: Pole must be metal. Backboards must be standard size. Material must be plexiglass, graphite or fiberglass. The color must be white, clear or gray with the exception of the manufacture's outline markings. Nets are required on all rims, no chain type nets are allowed.

(3) Maintenance: All goal supports, backboards, rims and nets must be well maintained at all times or will be required to be removed.

b) Permanent Goals (In ground):

(1) Location: Only one basketball goal per lot will be permitted. Permanent in ground goals must be located no more than ten (10) feet in front of the most setback portion of the façade of the house. Goals must never violate the side building lines or be permitted in the street or R.O.W. Goals shall not encroach upon any easements.

(2) Material: Pole must be metal. Backboards must be standard size. Material must be plexiglass, graphite, or fiberglass. The color must be white, clear or gray with the exception of the manufacture's outline markings. Nets are required on all rims, no chain type nets are allowed.

(3) Maintenance: All goal supports, backboards, rims and nets must be well maintained at all times or will be required to be removed.

c) Permanent Goals (Mounted):

i) Not allowed.

3) Building Extensions or Additions:

a) All elevation treatments such as entrance, windows, rooflines, etc. must follow common architectural design of the existing residence.

(1) Location: Must not encroach into any utility easement unless the utility companies involved have granted their written consent to such encroachments.

(2) Material: Exterior materials and colors should match the house as much as possible. The exterior design must be consistent/compatible with the architectural style of the home and when completed must appear to have been part of the home's original construction.

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(3) Dimensions: On individual basis, size and shape will depend on architectural style and layout of home, size of lot, and how well room addition integrates with existing home. Roof of addition must integrate with existing roof line so as to appear to have been part of the original house. Additions cannot exceed one-third (1/3) of the remaining backyard, but may be denied for other reasons, e.g., structural integrity, architectural suitability, etc., even if it only uses one-third (1/3) of the remaining yard.

(4) Submission Requirements: List all specifications relating to project design, structural framing; quality of exterior materials, colors, textures, and shape. Include engineered/architectural drawings.

4) <u>Walkways:</u>

a) Walkways should be a complimentary component of the site architecture and should not complete visually with the house and/or landscape.

(1) Location: Walkways may be in the front, side or rear of property, and is subject to easement restrictions.

(2) Material: Walkways shall be constructed with unity masonry, quarried stone or concrete. The use of alternate materials shall require the approval of the Committee. Asphalt walkways are prohibited. Walkways must be maintained in like new condition.

(3) Dimensions: A walkway must be a minimum of three (3) feet in width and no more than a maximum of five (5) feet in width. Side walkways shall be a minimum of three (3) feet in width and a maximum of three (3) feet in width.

5) <u>Decks/Patios:</u>

a) Decks and Patios may only be constructed in the backyard.

(1) Location: Decks and patios must be kept a minimum of five (5) feet from rear property lines and three (3) feet from side property lines, regardless of visibility. Decks and patios may not encroach into any utility easement unless the utility companies involved have granted their written consent to such encroachment. Deck systems should be sensitive to the privacy of neighboring homes and cannot negatively affect drainage of the owner's lot or neighboring lots.

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(2) Dimensions: Decks cannot exceed eighteen (18) inches in height. Overall square footage shall not exceed 300 square feet. ARC may approve larger dimensions on a case-by-case basis.

(3) Maintenance: All decks shall be left to weather naturally or be stained to match house siding or trim color. Trim boards should be used in all cases to conceal exposed joist ends. Shall be maintained in good condition.

(4) Material: Patios shall be constructed of materials that are harmonious with the main residence. Decks shall be constructed of material resistant to decay such as pressure-treated yellow pine, redwood, cedar or treated wood, concrete, masonry, or composite materials.

6) **Driveway Extensions:**

a) Under no circumstances will a driveway extension be granted for the sole purpose of providing additional automobile parking and painted driveways are not permitted.

(1) Material: Must meet driveway code utilizing concrete and rebar. The use of alternate materials will not be permitted.

(2) Dimensions: Driveway width can be no more than 18 feet in width at R.O.W. Must be four (4) inches thick and meet government agency requirements.

7) **Exterior Paint:**

a) Must be colors consistent with the Association standards of earth tones.

(1) Harmonious Colors: The proposed colors must be harmonious with each other and with the colors of the exterior brick and roofing materials.

(2) Trim: Soffit, fascia boards, window and door trim and rain gutters must also be harmonious colors; however, the shades of trim color may be deeper than the principal color of the residence garage.

(3) Gutters: When rain gutters are painted, their color must match the color of the fascia board trim. When "maintenance free" gutters are installed or replaced, their color must match (as closely as possible) the fascia board trim or previously approved existing gutters.

8) **Fence Replacement & Extensions:** The following fencing standards apply to all residential lots within the Community. However, due to the location of certain lots to greenbelts, wetlands, lakes, etc. there may be specific requirements for certain lots.

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a) Fence Replacement:

(1) Location: Fence sides to the public must be the "finished" side. All fencing is to be staggered or stair-stepped down slopes. The tops of these fences are to be level with the horizon. Fences shared between neighbors must be "good neighbor" fences, installed with alternating seven (7) foot panels and exposed rails along common interior lot lines.

(2) Material: Fences must be constructed of dog-eared cedar pickets and pine for post. No chain link, chicken wire, or lattice type fence construction will be permitted on any lot. To maintain a harmonious and consistent appearance throughout the community, fence sealants or stains are subject to Association approved product. Paints are prohibited.

(a) All corner lot fences and fences which face a restricted reserve or street must be installed with picket side out.

(3) Dimension: Must match builder installed fence design.

(4) Maintenance: Fences must be maintained in good condition.

b) Fence Extension:

(1) Location: No fence may extend past the front building line of the home. Extensions shall be at least ten (10) feet behind the front elevation of the home.

(2) Material: Fences must be constructed of dog-eared cedar pickets and pine for post. No chain link, chicken wire, or lattice type fence construction will be permitted on any lot. To maintain a harmonious and consistent appearance throughout the community, fence sealants or stains are subject to Association approved product. Paints are prohibited.

(3) Dimension: Must match builder installed fence design.

9) Gazebo/Outdoor Structures:

a) A Gazebo/Outdoor Structures shall be defined as a free standing, open framed structure whose purpose shall not be for any type of open storage.

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(1) Location: Gazebos must be located on the rear yard and must be a minimum of five (5) feet from side and rear property lines. Gazebos must not encroach on any utility or drainage easement and must not interfere with drainage.

(2) Material: Must be constructed of materials resistant to decay, such as pressure-treated yellow pine, redwood, cedar or treated wood painted a color and shade similar to and harmonious with exterior of the residence. Roofing materials shall match existing residence. Alternate materials are subject to ARC review and approval.

(3) Dimensions: The maximum height for Gazebos may not exceed twelve (12) feet measured from the natural ground to the highest point. Flooring cannot exceed eighteen (18) inches in height from natural ground. Overall square footage shall not exceed 300 square feet. ARC may approve larger dimensions on a case-by-case basis.

10) <u>Landscape:</u>

a) Landscaping is defined as living plants, trees, shrubs, flowers, etc., and utilization of non-living material necessary for growth, e.g. bark, mulch, etc.

(1) Location: Landscape is intended to compliment the architectural style of the residence. Landscape cannot negatively affect drainage onto neighboring or adjacent properties. Landscape cannot be planted in the right of way or be planted that will obstruct sight lines.

(2) Material: Landscape must be live plants. Artificial plants, trees, shrubs, flowers, etc., are not allowed as part of the landscaping and are prohibited. All planting beds are to be mulched with black or brown, no red mulch will be permitted.

(3) Maintenance: Builder installed landscaping shall be maintained as installed.

11) <u>Outdoor Lighting:</u>

a) Outdoor lighting shall be installed in such a way to minimize the amount of spill light on adjacent properties, homes or streets. All lights must be installed on the rear of the home or garage. The only exception are low voltage landscaping lights, lamppost or decorative fixtures of an understated design which complements the architectural style of the residence.

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(1) Landscape Lighting: Lights must be located at ground level in flowerbeds and must luminate white.

(2) Lamppost: Only one (1) lamppost may be approved for placement in the front yard, it must be placed in the street right right-of-way and must luminate white. Lamppost must not exceed seven (7) feet in height, including the globe(s) and any decorative components. Post must be constructed of metal in one of the following colors: black, or earth tone. The lamppost must harmonize with the architecture of the residence and neighborhood.

(3) Fixtures: All fixtures must be Underwrite Laboratories (UL) approved and may be of the following type: Incandescent cannot exceed 150-watts; Gas cannot exceed the equivalent amount of light produced by a 100-watt incandescent fixture; High Pressure Sodium cannot exceed 35-watts. No rope or under eave lighting permitted.

12) <u>Outdoor Kitchen:</u>

(1) Material: Building materials must be compatible/harmonious with the existing residence.

(2) Location: Must not encroach onto any utility easements or negatively affect drainage on owner's lot or neighboring lots.

13) <u>Patio Cover:</u>

a) Patio covers are considered to be additions to the rear of the residence that have no enclosure walls.

(1) Location: Must not encroach on any utility or drainage easement, nor shall it violate the building setback lines applicable to the residential dwelling on any lot. Patio covers must not interfere with drainage or cause water to flow onto any adjacent lot.

(2) Material: Patio cover must be of natural pressure treated wood such as cedar, redwood or pine with the exception of professionally installed anodized or baked enameled finish aluminum. Patio covers must be integrated into the existing roofline flush with the eaves, when possible. Metals and fiberglass materials are strictly prohibited. Supports must be painted wood, treated wood, Hardie Plank, stone, brick, or painted metal columns to match the existing residence. Shingles are required and must match the existing color of the residence.

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(3) Dimensions: Patio covers shall be securely attached at a height not less than seven (7) feet, nor more than twelve (12) feet from ground level. The top of the patio cover at its lowest point shall not be higher than eight (8) feet from ground level. The patio cover roof shall provide an attractive slope away from the house at an angle that does not exceed that of the roof of the residence. No patio cover shall protrude from the sides of the residence.

14) <u>Rear Yard Recreational Equipment:</u>

a) For the Purpose hereof, rear yard recreational equipment shall mean any type of children's playhouses, play set, climbing/jumping structure, slides, raised play sets, swing set, or trampoline.

(1) Location: Recreational equipment shall be located in the rear yard, so they are screened from public and private view to the maximum extent possible by permanent structures (such as the house, garage or wood fences) or landscaping. All playhouses, play structures, and swing sets must be a minimum of eight (8) feet from the side and rear property lines (fence). When the rear or side property line of a lot is adjacent to a street, additional landscaping may be required.

(2) Size: Playhouses, play structures, and swing sets must not exceed one hundred thirty (130) square feet in size. The maximum allowable height for playground equipment is twelve (12) feet. Standing platforms shall not exceed six (6) feet above natural ground.

(3) Materials: Playhouses and play structures must be constructed of materials resistant to decay, such as pressure-treated yellow pine, redwood, cedar or painted treated wood to be in harmony with the existing residence. Swing sets, trampolines, etc. may be constructed of metal. Tarp roofs, awnings or covers must be in primary or earth tone solid colors. Safety netting on trampolines must be black, white or neutral in the color.

(4) Maintenance: All playhouses, play structures, swing sets, and trampolines, etc. shall be maintained in such a fashion as to not detract from the neighborhood, such as, but not limited to: for playhouses, play structures: replacement of torn or discolored tarps or covers; for swing sets, repainting of any rusted or discolored parts, replacement of torn or detached safety nets on trampolines.

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15) <u>Pool, Spas and Ground Level Decks:</u>

a) Pools and spas must be constructed in compliance with the National Electrical Code to include ground fault interrupters and comply with the current Standard Swimming Pool Codes. Aboveground swimming pools are not permitted.

(1) Location: All pools, spas and ground level decks must be located in the rear yard. Equipment such as filters, pumps, LPG tanks, etc. must be located in the rear yard, but must not encroach any easements. Pool or spa walls must not encroach into a side or rear utility easement. Decks may encroach into easements, but are subject to removal by utility companies and homeowners are financially responsible for replacement of the deck located in the easement. Pool decking or ground level wood decks must be located at least three (3) feet from the side and or rear property lines to ensure privacy to adjacent property owners and to allow for lot drainage. Above ground spas must be located a minimum of five (5) feet from either the side or rear property line. The contactor and the homeowner are responsible for establishing proper drainage of the lot and deck areas during and after construction. No swimming pool, spa or deck shall be constructed in a manner to impede drainage on a lot or cause water to flow on an adjacent lot.

(2) Dimensions: Pool decks or freestanding ground level wood decks must not exceed eighteen (18) inches in height. Swimming pool appurtenances, such as rock waterfalls and slides must not exceed six (6) feet in height. Above ground spas must not exceed four (4) feet in height and any decking surrounding the structure must not exceed that height.

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(3) Construction Access: Pool construction access routes are on either side of the house (within the lot property lines). Access routes must be stated on the application and indicated on the lot survey. If a homeowner wishes to use an alternative access route over Association property, it must be submitted with the reason for the variance and each request will be considered on a case by case basis. If any pool or spa construction uses access to the backyard over or through: (1) a landscape area maintained by the Association; or (2) a sidewalk; then either the homeowner or pool contractor must deposit $1,000 with the Association. The $1,000 deposit will be returned based on the following conditions: (1) there is no damage to the landscape area or sidewalk; or (2) any damage is repaired to the satisfaction of the Association. The Association may retain all, or any portion, of the $1,000 deposit depending on the extent of the damage as determined by the Association.

(4) Maintenance: All swimming pools and spas must be properly maintained year-round to comply with all County and State regulations. Proper drainage must be maintained and pool run off/drainage must not affect neighboring properties. If area drains are routed to the street through the curb, the curb must be patched, replaced, and maintained in good condition.

16) <u>Antennas and Satellite Dish:</u>

a) Antennas and Satellite dishes are designed to receive local broadcast satellite service.

(1) Location: No Antenna or satellite dish shall be placed, allowed or maintained upon a visible location unless a visible location is the only location on a unit where signals may be received or transmitted without interference with reception. If antenna or satellite dish must be placed in a visible location, it must be screened from public view to the most extent without interfering with the reception.

(2) Maintenance: Antenna and satellite dishes must be maintained in like new condition at all times. If not in use anymore, must be removed.

17) <u>Shutters:</u>

(1) Material: Shutters must be the standard, type, quality and color of the materials used in construction of the main residence.

(2) Location: Shutters may only be installed only the front windows of the home.

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(3) Size: Shutters must be the same length of the windows it will be installed on.

(4) Maintenance: Shutters must be kept in like new condition to not detract from the community.

18) <u>Solar Screen:</u>

(1) Material: Solar screens must blend with the siding, trim and roof color of the home.

19) <u>Sprinkler System:</u>

(1) Location: Sprinkler heads should be located to effectively water area intended with minimum overthrow onto pavement, walks, etc., and to effect one hundred percent (100%) overlap insuring effective and even coverage.

20) <u>Storage Building:</u>

a) Storage Buildings (*i.e.*, tool or storage shed) are to have an exterior that architecturally compliments the exterior of the main dwelling. The roof of an outbuilding shall conform to the provisions relating to roofing materials set forth in these Guidelines. No used outbuildings may be moved onto the property.

(1) Location: Storage buildings shall be located in the rear yard, so they are screened from public view to the maximum extent possible. All storage buildings must be a minimum of five (5) feet from the side and rear property lines. No outbuildings shall be approved for construction on easements or may impede the drainage on the lot or cause water to flow to an adjacent lot.

(2) Size: Storage Buildings shall not exceed nine (9) feet in height and must not exceed one hundred twenty (120) square feet in size.

(3) Material: The standard, type, quality, and color of the materials used in the construction of a storage building must be harmonious with the standard, type, quality, and color of the materials used in construction of the main residence. The roof must match the home and be constructed of composition shingles closely matching the existing shingle color on home. Prefabricated storage buildings may be permitted provided the color blends with the house and the roof is shingled. Corrugated roofs shall not be permitted under any circumstance. Storage buildings must be on a four (4) inch concrete slab.

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21) Storm Doors:

a) Storm doors must be harmonious with the exterior appearance of the house.

(1) Material: the frames of storm doors must be of a color compatible with the exterior house colors and/or general use and appearance of the house. All storm doors must be a full glass door. No screen doors are allowed.

(2) Maintenance: Must be kept in like new condition.

22) Window Replacement:

(1) Material: Window replacements must be harmonious with the home and community if style of new windows differ from original style. Wood windows shall be primed, painted or stained in colors complementary to the masonry. Metal windows are also acceptable in white or dark anodized colors.

23) Front Yard Accessories:

a) A maximum of four (4) front yard accessories will be allowed with a combination of accessories.

(1) Location: Accessories must be an integral part of the landscaping and blend in with the existing shrubbery or trees. This includes the lot front of the fence line and any side yards on corner lots.

(2) Size: Yard accessories are not to exceed eighteen (18) inches in height. The exception is decorative landscape planters', and/or pots, used for the display of flowers or other approved landscape material, which may be approved taller than 18" but still apply to the accessories maximum allotment.

(3) Materials: Decorative accessories, landscape planters, and pots, must be constructed of precast concrete, marble, painted cast aluminum, terra cotta, or other durable material. Wooden barrels, plastic, fiberglass, and other non-durable materials are not accepted materials for landscape planters, pots or decorative accessories.

(4) Maintenance: All Accessories shall be maintained in such a fashion as to not detract from the neighborhood. Landscape planters, pots, and decorative accessories must be maintained with landscape materials at all times.

(5) Prohibited Accessories: Free standing flagpoles, park benches, bird baths, decorative fountains, and other items not meeting the established guidelines are not permitted within the visible front or side yards of residential lots.

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24) Perimeter Fencing:

a) Perimeter Fencing is permitted to the extent required by 202.018 of the Texas Property Code, subject to the following regulations:

(1) The installation, construction and/or replacement of a fence requires pre-approval from the MRC prior to the commencement of construction. Fences enclosing the rear portion of a Lot shall comply with existing restrictive covenants, By-Laws, Policies and/or Guidelines adopted by the Association.

(2) Fences may be installed on the front and/or side areas of a Lot. In such instances, fences which are installed on the front and/or side areas of a Lot, shall be constructed only of steel, with a minimum of four inches (4") between the vertical components, shall not be less than five feet (5') in height, and shall not exceed six feet (6') in height, measured from the surface of the ground to the upper-most portion of such fence. Such fences shall be powder coated black.

(3) Such fences shall not encroach on any Building Line and/or any Easement which appears on the pertinent subdivision Plat and/or Plat of Survey of such Lot. Under no circumstances shall such a fence be installed within three feet (3') of any existing sidewalk. No landscaping, hedge, bush, vines, greenery, or other vegetation shall be planted adjacent to such fences, in order that visual line of sight obstructions may be avoided.

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e-Filed & e-Recorded in the

Official Public Records of

HARRIS COUNTY

TENESHIA HUDSPETH

COUNTY CLERK

Fees $74.00

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RECORDERS MEMORANDUM
This instrument was received and recorded electronically and any blackouts, additions or changes were present at the time the instrument was filed and recorded.

Any provision herein which restricts the sale, rental, or use of the described real property because of color or race is invalid and unenforceable under federal law.
THE STATE OF TEXAS
COUNTY OF HARRIS
I hereby certify that this instrument was FILED in File Number Sequence on the date and at the time stamped hereon by me; and was duly RECORDED in the Official Public Records of Real Property of Harris County, Texas.

COUNTY COURT OF HARRIS COUNTY, TEXAS

Teneshia Hudspeth
COUNTY CLERK
HARRIS COUNTY, TEXAS